

Tentative Rulings for July 2, 2026 Department M205

**To request oral argument, you must notify
Judicial Secretary Kari Gates at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department M205 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 571 6184**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVME2504256	WELLS FARGO BANK, NA VS BAIR	MOTION TO DEEM MATTER ADMITTED

Tentative Ruling: Motion is unopposed. Motion is **GRANTED**. Requests for Admission propounded on 03/27/2026 are deemed admitted. Court to sign the proposed order.

2.

CASE #	CASE NAME	HEARING NAME
CVME2507370	JPMORGAN CHASE BANK N.A. VS PERZABAL	MOTION TO VACATE DISMISSAL 664.6 AND ENTRY OF JUDGMENT

Tentative Ruling: Motion unopposed.

IT IS ORDERED that the dismissal as to GONZALO PERZABAL submitted in the above-entitled action be set aside and that Plaintiff JPMorgan Chase Bank, N.A., shall have and recover from Defendant GONZALO PERZABAL the principal sum of \$6,336.00 plus court costs in the sum of \$0.00 for a total judgment of \$6,336.00. Court to sign the proposed order and the proposed judgment.

3.

CASE #	CASE NAME	HEARING NAME
CVME2511050	CAVALRY SPV I, LLC VS DANAN	MOTION TO COMPEL ARBITRATION

Tentative Ruling:

Moving party: Defendant Mark Danan, in pro per
Responding party: Plaintiff Cavalry SPV I, LLC

Motion filed: 5/15/25, served by certified mail on 5/16/26
Opposition filed: 6/18/26, served by overnight mail on 6/18/26
Reply filed: 6/22/26, served by certified mail on 6/24/26

CCP §1281 requires a trial court to grant a petition to compel arbitration “if [the court] determines that an agreement to arbitrate the controversy exists.” (CCP §1281.2.) “A petition to compel arbitration “is in essence a suit in equity to compel specific performance of a contract.”” (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 411 (“*Rosenthal*”) *quoting Spear v. California State Auto. Assn.* (1992) 2 Cal. 4th 1035, 1040.) “[W]hen a petition to compel arbitration is filed and accompanied by prima facie evidence of a written agreement to arbitrate the controversy, the court itself must determine whether the agreement exists and, if any defense to its enforcement is raised, whether it is enforceable. Because the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence. If the party opposing the petition raises a defense to enforcement . . . that party bears the burden of producing evidence of, and

proving by a preponderance of the evidence, any fact necessary to the defense.” (*Rosenthal, supra*, 14 Cal.4th at p. 413.) “In these summary proceedings, the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination.” (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972 *citing Rosenthal, supra*, 14 Cal.4th at p. 413.)

In determining whether or not Danan waived his right to arbitrate, the court considered that the parties specifically agreed by contract that “[a]rbitration may be requested any time, even where there is a pending lawsuit, unless a trial has begun or a final judgment entered. Neither you nor we waive the right to arbitrate by filing or serving a complaint, answer, counterclaim, motion, or discovery in a court lawsuit. To choose arbitration, a party may file a motion to compel arbitration in a pending matter and/or commence arbitration by submitting the required AAA forms and requisite filing fees to the AAA.” In light of this contractual agreement, the court finds that Defendant has not waived his right to arbitration and **GRANTS** the motion to compel Calvary to arbitrate its claims. Plaintiff must initiate the arbitration proceedings with AAA, including paying any of the related filing fees required, within 30 days of this court’s order. Just as the contract provides that Danan can move for arbitration at any time, it also provides that since this action is for the collection of a debt, he is responsible to pay his share of the filing fees.

In addition, the court stays these proceedings pending Danan’s timely election to pursue arbitration of this dispute pursuant to the terms of this court’s order.

4.

CASE #	CASE NAME	HEARING NAME
CVME2604114	EVERGREEN BANK GROUP VS PITTMAN	HEARING ON NOTICE OF APPLICATION FOR WRIT OF POSSESSION

Tentative Ruling: Application unopposed.

Application **GRANTED**. Court to sign the Order for Writ of Possession.

5.

CASE #	CASE NAME	HEARING NAME
CVME2606789	IN RE: 765 S STATE STREET, HEMET, CA 92543	PETITION RE: UNRESOLVED CLAIMS

Tentative Ruling:

Moving party: Petitioner Quality Loan Service Corp.

Responding party:

Motion filed: 5/13/26

Opposition filed:

Reply filed:

This is a petition regarding unresolved claims pursuant to Civil Code section 2924j filed May 13, 2026 regarding \$26,688.08¹ in surplus funds after trustee's sale. The petition states that the surplus funds belong to Arlene Frances Martinez, but that Trustee received a claim from James Q. Lacklear Jr. Based on Mr. Lacklear's objection, Petitioner alleges it is unable to determine how the remaining surplus funds should be distributed.² As a conflict exists between potential claimants to the surplus funds.

Mr. Lacklear's objection is on the grounds that he is an heir and creditor of the Estate of James Q. Locklear Sr. who owned 50% of the property at the time of the foreclosure on November 20, 2025. The property's grant deed reflects ownership was by "James Quentin Lacklear, Sr. A widower & Arlene Frances Martinez, A married woman as her sole and separate property." Lacklear Sr. died in 2014.

Lacklear Jr. asserts that Martinez is not the personal representative of the estate and that he has a pending creditor's claim in probate, but provides no declaration or reference to the probate proceeding. He simply asserts that on February 5, 2026, he filed a declaration with the Riverside County Superior Court notifying the court of the pending claim and Ms. Martinez's lack of authority and that the surplus funds should be deposited with the court.

On May 22, 2026, this court sent a notice to all potential claimants. Thereafter, Arlene Martinez filed a claim with this court alleging that she filed a Petition for Probate for James Locklear Sr., which Petition was granted and the Order for Probate was signed on November 4, 2025. She asserts that on April 17, 2026, this Order for Probate was amended and the Court authorized for "any Estate Funds that comes into the possession of Claimant shall be placed into Olson Law Firm's Trust Account...", which funds shall not be disbursed until further Order of the Court. Attached was a copy of the Order for Probate issued in PRMC2500688, The Estate of James Q. Locklear, Sr.

Accordingly, this court **DENIES** the petition. This court will not accept any funds. The Trustee can comply with the Court's order in PRMC2500688 and be relieved of further responsibility related to the surplus funds.

6.

CASE #	CASE NAME	
CVSW2206755	TRUIST BANK VS BEAUCHAMP	MOTION FOR ENTRY OF JUDGMENT

Tentative Ruling: Motion unopposed. Motion **GRANTED**. Court to sign the proposed order and the proposed judgment

7.

CASE #	CASE NAME	HEARING NAME
CVME2502871	CITIBANK N.A. VS BERRY	MOTION FOR JUDGMENT ON THE PLEADINGS

Tentative Ruling:

The Plaintiff through counsel was present on May 12, 2026, Defendant was not present. Hearing was on calendar for an Order to Show Cause why sanctions or a dismissal shall not be imposed for failure to file a dismissal or stipulated agreement. Plaintiff indicated that Defendant has not signed the agreement nor made any payments. Plaintiff stated they wanted to proceed with a Judgment on the Pleadings. The court noted a motion had not been filed. However, the court reserved the date of July 2, 2026 at 1:30 p.m. for the hearing on Judgment on the Pleadings and Plaintiff was to give notice.

The court still does not have a motion from the Plaintiff or that the Defendant was served with any motion for judgment on the pleadings or notice of today's court date.

Therefore, this matter is **Dismissed without prejudice**.